

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Magdalena Skowron-Muco	Team: Team # 2	CCRB Case #: 201003316	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 03/12/2010 3:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/12/2011	Precinct: 71
Date/Time CV Reported Fri, 03/12/2010 3:43 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 03/12/2010 3:43 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Clifford Louis	02793	927098	071 PCT
2. POM Christophe Tehan	29544	944186	071 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Clifford Louis	Abuse: Sgt. Clifford Louis stopped § 87(2)(b)	A . Exonerated
B . POM Christophe Tehan	Abuse: PO Christopher Tehan stopped § 87(2)(b)	B . Exonerated
C . SGT Clifford Louis	Abuse: Sgt. Clifford Louis frisked § 87(2)(b)	C . Exonerated
D . SGT Clifford Louis	Abuse: Sgt. Clifford Louis searched § 87(2)(b)	D . Unsubstantiated
E . POM Christophe Tehan	Abuse: PO Christopher Tehan searched § 87(2)(b) s	E . Unsubstantiated
F . SGT Clifford Louis	Force: Sgt. Clifford Louis used physical force against § 87(2)(b)	F . Exonerated

Case Summary

On March 12, 2010, § 87(2)(b) contacted the CCRB, via call processing system, and filed a complaint regarding an incident that took place on that same day (encl. 3-3a). On March 12, 2010 at approximately 3:43 a.m., Sgt. Clifford Louis and PO Christopher Tehan encountered § 87(2)(b). No arrests were made or summonses issued. The following allegations resulted from the officers' action:

Allegation A: Sgt. Clifford Louis stopped § 87(2)(b)

Allegation B: PO Christopher Tehan stopped § 87(2)(b) § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations A and B** be closed as **Exonerated**.

Allegation C: Sgt. Clifford Louis frisked § 87(2)(b) § 87(2)(g)

§ 87(2)(b) It is recommended that **Allegation C** be closed as **Exonerated**.

Allegation D: Sgt. Clifford Louis searched § 87(2)(b) § 87(2)(g)

§ 87(2)(b) It is recommended that **Allegation D** be closed as **Unsubstantiated**.

Allegation E: Sgt. Clifford Louis used physical force against § 87(2)(b) § 87(2)(g)

§ 87(2)(b) It is recommended that **Allegation E** be closed as **Exonerated**.

Allegation F: PO Christopher Tehan searched § 87(2)(b) **s book bag.** § 87(2)(g)

§ 87(2)(b) Therefore, it is recommended that **Allegation F** be closed as **Unsubstantiated**.

Mediation was explained and offered to § 87(2)(b) § 87(2)(b) declined the offer because he did not want to mediate with the subject officers § 87(2)(b)

Results of Investigation

Civilian Statement(s)

Complainant: § 87(2)(b)

- § 87(2)(b) -old, black male, § 87(2)(b), black hair and brown eyes.

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on March 12, 2010 (encl. 4-4a). On March 12, 2010 at approximately 3:00 a.m., § 87(2)(b) parked his car at a parking garage and walked on § 87(2)(b) in Brooklyn toward his residence, which is located at § 87(2)(b). § 87(2)(b) had been at a music studio in Manhattan for several hours prior to that. On the way home from Manhattan, § 87(2)(b) made stops on Rogers Avenue, Fillmore Street and Montgomery Street to drop off friends. The friends just exited § 87(2)(b)'s vehicle. No other individuals approached the vehicle. § 87(2)(b) wore a brown suede jacket, a sweater

with navy, orange and grey horizontal stripes, grey/black denim pants, and navy and orange sneakers. § 87(2)(b) wore a gray and black Swiss Army backpack on his shoulders. § 87(2)(b) had not consumed any alcohol on that night. He was not under the influence of any other substance.

As § 87(2)(b) walked on § 87(2)(b) § 87(2)(b), and neared his residence, two plainclothes officers, in an unmarked, dark color Chevy Impala pulled up alongside § 87(2)(b) § 87(2)(b). There was nobody else in the street.

The passenger, PO 1, was either a Hispanic or black male, approximately 5'10" tall and 200 pounds, in his late 20's or early 30's, in plainclothes. He was identified through the investigation as Sgt. Clifford Louis. The driver, PO 2, was a white male, in plainclothes, bald, approximately 5'11" tall and 150 pounds, in his early 40's. He was identified through the investigation as PO Christopher Tehan. Sgt. Louis and PO Tehan looked at § 87(2)(b) for approximately 20 seconds and asked, "What's up?" § 87(2)(b) responded for the officers to tell him what was up and he continued walking toward his residence. Sgt. Louis flashed his badge at § 87(2)(b) very quickly and asked what § 87(2)(b) had in his backpack. § 87(2)(b) responded that it was not his concern and continued walking. Sgt. Louis and PO Tehan exited the unmarked vehicle and followed § 87(2)(b) as he entered his building, which is approximately ten feet away from the street curb. § 87(2)(b)'s back was toward the officers. After § 87(2)(b) passed the first door, which does not lock, Sgt. Louis and PO Tehan walked into the building after § 87(2)(b). There are not any surveillance cameras inside or outside the building. There were not any civilians inside the building.

§ 87(2)(b) requested to know why he was being stopped. Sgt. Louis yelled that he was the authority and demanded to know what § 87(2)(b) had in his backpack. In a calm tone, § 87(2)(b) stated that there was not any crime committed and that the officers did not have the right to stop him. Sgt. Louis stated that the officers were investigating a burglary. § 87(2)(b) proceeded up four stairs inside the lobby into the building through a second entry door. Sgt. Louis stated that § 87(2)(b) was resisting and he wrapped his arms around § 87(2)(b) from behind, frisked § 87(2)(b)'s upper body and waistband. Sgt. Louis placed his hands into § 87(2)(b)'s jacket pockets and front pant pockets and asked whether there was a gun or drugs in the bag. Sgt. Louis grabbed § 87(2)(b) by his sweater and slammed him against the wall. § 87(2)(b) became upset and yelled for the officers to let go of him and Sgt. Louis pressed his fist against § 87(2)(b)'s chest approximately three times. § 87(2)(b) was not injured. PO Tehan pulled § 87(2)(b)'s backpack from his shoulders and he and § 87(2)(b) struggled over the bag briefly. Then, PO Tehan got hold of the bag, opened it and looked through it. A hard drive fell out from the backpack and fell down the steps. PO Tehan did not confiscate anything from the bag. § 87(2)(b) was not in possession of any contraband. Sgt. Louis slammed § 87(2)(b) against the wall again, turned his own left cheek and told § 87(2)(b) to hit him. § 87(2)(b) did not strike the officer. Sgt. Louis repeatedly requested to see § 87(2)(b)'s identification. § 87(2)(b) declined to show his identification and told Sgt. Louis that if he wanted to see the identification, he would have to get it out himself. § 87(2)(b) told Sgt. Louis that the stop was harassment, at which point, Sgt. Louis instructed § 87(2)(b) to spell the word harassment. § 87(2)(b) requested to see Sgt. Louis's badge number. Sgt. Louis held up his badge for § 87(2)(b) to see. § 87(2)(b) walked toward Sgt. Louis and obtained the badge number 2793. Then, the officers went downstairs and checked the number of the building. § 87(2)(b) proceeded upstairs to his apartment.

NYPD Statement(s):

Subject Officer: SGT. CLIFFORD LOUIS

- § 87(2)(b) -old, black male, § 87(2)(b), black hair and brown eyes
- Assigned to anti-crime, partnered with PO Christopher Tehan, utilized RMP # 229, in plainclothes

Memo Book

Sgt. Louis had an entry in his memo book regarding the incident which read, "At 3:14 a.m., male stopped in front of and inside of § 87(2)(b) Male black, approximately 5'6"-5'7" tall, 140-150 pounds, 28-30 years old. Wearing brown jacket, blue jeans, black book bag, plastic bag containing electronics. Very combative, bad attitude, uncooperative. At 3:19 a.m., a UF 250 was prepared by PO Tehan for burglary. Sprint # F1761. Refused i.d. Subject was explained reason for stop. Area has high incidence for burglaries (encl. 5-5b).

CCRB Testimony

Sgt. Louis was interviewed at the CCRB on May 26, 2010 (encl. 5c-5d). On March 12 2010 at approximately 3:14 a.m., as Sgt. Louis and PO Christopher Tehan worked overtime to address a burglary pattern in the neighborhood, they observed § 87(2)(b) peer into parked cars as he walked eastbound on § 87(2)(b) in Brooklyn. Sgt. Louis and PO Tehan observed § 87(2)(b) for approximately fifteen seconds and considered this to be suspicious behavior. At that time, the burglary pattern had been going on for a month and there were reported burglaries on that day in the area neighboring § 87(2)(b) There were not any other civilians outside.

Sgt. Louis and PO Tehan gave a verbal command of "Police, stop." At least three verbal commands were given. § 87(2)(b) disregarded the commands and walked into § 87(2)(b) Suspecting that criminality may be afoot, Sgt. Louis and PO Tehan followed § 87(2)(b) into the building and stated, "Police, stop." § 87(2)(b) stood sideways to the officers and attempted to gain entry into the building through the door in the lobby. § 87(2)(b) reached toward his waistband. Sgt. Louis did not observe any bulges on § 87(2)(b)'s waistband. § 87(2)(b)'s waistband was frisked for weapons by Sgt. Louis and PO Tehan. § 87(2)(b) was not searched. Sgt. Louis and PO Tehan held § 87(2)(b) as a means of restraining him as he was frisked. Sgt. Louis did not grab § 87(2)(b) by his sweater or push him. This was the sole force used against § 87(2)(b) No contraband was recovered. § 87(2)(b) stated that the officers could not go into his bag. § 87(2)(b) was combative and used profanity. Sgt. Louis and PO Tehan frisked the outside of the bag and felt a hard object. Sgt. Louis and PO Tehan opened the bag, looked inside and observed electronics inside the bag. He denied entering the bag. Sgt. Louis requested § 87(2)(b)'s identification and explained that there is a high rate of burglaries in the area. § 87(2)(b) remained uncooperative.

Sgt. Louis maintained that the actions indicative of a violent crime noted on the stop and frisk report were in reference to § 87(2)(b) peering into car windows because burglary is classified as a violent crime. Furtive movements on the report referred to § 87(2)(b)'s disregard of verbal commands and touching of his waistband.

Subject Officer: PO CHRISTOPHER TEHAN

- § 87(2)(b) -old, § 87(2)(b) white male with brown hair and brown eyes
- Assigned to anti-crime, partnered with Sgt. Clifford Louis, utilized unmarked vehicle # 229, in plainclothes

Memo Book

PO Tehan had an entry in his memo book regarding the incident which read, "At 3:14 a.m., one male stopped in front of § 87(2)(b). Male black, approximately 140-150 pounds, 5'6"-5'7" tall. Refused i.d. Very combative behavior. Carrying book bag and black bag containing electronics and wires. At 3:19 a.m., stop and frisk report filled out. Sprint # F1761. Subject was very uncooperative"

CCRB Testimony

PO Tehan was interviewed at the CCRB on May 26, 2010 (encl. 6-6a). His testimony was similar to that provided by Sgt. Louis with the following additions. On March 12, 2010 at approximately 3:14 a.m., for approximately two minutes, PO Tehan and Sgt. Louis observed § 87(2)(b) peer into car windows as he walked on § 87(2)(b) in Brooklyn. § 87(2)(b) held a plastic bag with wires hanging out and he was in possession of a book bag which was filled to capacity. PO Tehan and Sgt. Louis stopped their vehicle and identified themselves as police. § 87(2)(b) § 87(2)(b) became verbally abusive and asked why the officers were "fucking" bothering him. Upon the officers' inquiry as to what was in the bag, § 87(2)(b) stated that the officers could not enter his bag. He disregarded lawful orders for him to stop and walked into § 87(2)(b) § 87(2)(b). PO Tehan and Sgt. Louis followed § 87(2)(b) into the building.

Inside the lobby, PO Tehan and Sgt. Louis frisked § 87(2)(b)'s waistband for weapons. No contraband was recovered. No search of § 87(2)(b)'s person was conducted. Sgt. Louis asked three times to see what was inside the bag but § 87(2)(b) refused. Then, Sgt. Louis gave § 87(2)(b) a lawful order to show what was in the bag. § 87(2)(b) did not comply. PO Tehan and Sgt. Louis took § 87(2)(b)'s bag and looked and observed that there were electronics inside. PO Tehan denied entering the bag.

PO Tehan did not observe Sgt. Louis grab § 87(2)(b) by his sweater or push him against a wall. Sgt. Louis only restrained § 87(2)(b) by holding his arms when he attempted to impede on the officers' attempts to see what was in his bags. § 87(2)(b) flailed his arms and was non-compliant with commands to stop.

NYPD Document(s)

Stop, Question and Frisk report (UF-250)

Stop, question and frisk report # § 87(2)(b) documented that on March 12, 2010 at 3:14 a.m., PO Tehan and Sgt. Louis stopped and frisked an unidentified black male, who was 5'6" tall weighing approximately 140 pounds. The crime suspected was burglary (encl. 8).

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of June 4, 2010 with regard to the incident (encl. 8a).

Civilian(s) Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b)

Subject Officer(s) CCRB History

- Sgt. Louis has been a member of the service for nine years and there is one substantiated CCRB allegation against him. In case # 200705078, an allegation of a retaliatory summons issued was substantiated against Sgt. Louis and command discipline was recommended. Sgt. Louis received instructions (encl. 1-1a).
- PO Christopher Tehan has been a member of the service for three years and there are not any substantiated allegations against him (encl. 1b).

Conclusion

Allegations Not Pleaded

§ 87(2)(g)

Identification of Subject Officer(s)

§ 87(2)(b) obtained Sgt. Louis's badge number. At his interview, Sgt. Louis identified PO Tehan as his partner on the incident date. Sgt. Louis and PO Tehan acknowledged interacting with § 87(2)(b)

Investigative Findings and Recommendations

Allegation A: Sgt. Clifford Louis stopped § 87(2)(b)

Allegation B: PO Christopher Tehan stopped § 87(2)(b)

Sgt. Louis and PO Tehan maintained that as they investigated a robbery pattern pertaining to the theft of electronics, they observed § 87(2)(b) walk on § 87(2)(b) with an over stuffed backpack as he peered into car windows. Upon their request for information, § 87(2)(b) admittedly disregarded several lawful orders. He refused to produce identification throughout the entire incident. § 87(2)(g)

the NYS Court of Appeals, which states that officers must have, "reasonable suspicion that a

person is committing, has committed or is about to commit a felony or Penal Law misdemeanor” in order to, “stop the subject...and detain him while an expeditious investigation is conducted to determine if there is probable cause to arrest the subject” (encl. a) § 87(2)(g)

It was noted on the Stop, Question and Frisk report that circumstances leading to § 87(2)(b)'s stop were furtive movements and actions indicative of engaging in violent crimes (encl. 8). During their respective interviews, the officers explained that these circumstances were § 87(2)(b)'s refusal to comply with lawful orders and potential grand theft auto, § 87(2)(g)

it is recommended that **Allegation A** be closed as **Exonerated**.

Allegation C: Sgt. Clifford Louis frisked § 87(2)(b)

§ 87(2)(g) Sgt. Louis admitted that he frisked § 87(2)(b)'s waistband for weapons. The Patrol Guide Procedure states that, “When a uniformed member of the service reasonably suspects a person has committed, is committing or is about to commit a felony or a Penal Law misdemeanor,” uniformed members of service may frisk individuals when they suspect they or others may be in danger of physical injury (encl. b). § 87(2)(g)

It is recommended that **Allegation C** be closed as **Exonerated**.

Allegation D: Sgt. Clifford Louis searched § 87(2)(b)

Allegation F: PO Christopher Tehan searched § 87(2)(b)'s book bag

§ 87(2)(b) alleged that Sgt. Louis entered his jacket pockets and front pant pockets. Sgt. Louis and PO Tehan denied that § 87(2)(b) was searched. Furthermore, § 87(2)(b) alleged that PO Tehan went through his bag. PO Tehan and Sgt. Louis maintained that they looked inside § 87(2)(b)'s bag, for their safety, after a frisk of the bag revealed that the bag contained a hard object. PO Tehan and Sgt. Louis denied entering the bag. § 87(2)(g)

It is recommended that **Allegations D and F** be closed as **Unsubstantiated**.

Allegation E: Sgt. Clifford Louis used physical force against § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Louis slammed him against the wall repeatedly. § 87(2)(b) did not suffer any injuries. The officers maintained that Sgt. Louis only used minimum necessary force against § 87(2)(b) to restrain him as he attempted to impede on police work; the frisk of his waistband and bag. § 87(2)(g)

It is recommended that **Allegation E** be closed as **Exonerated**.

